

(Disposed Of) vs The Wbsedcl & Ors on 17 July, 2017

Author: Harish Tandon

Bench: Harish Tandon

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17.07.2017
Court No. 02
Item No. SL-04
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WP 10501 (W) of 2017

Serej Sk. & Ors.

(DISPOSED OF)

Vs.

The WBSEDCL & Ors.

Mr. Prosenjit Mukherjee, Advocate

.....for the Petitioner

Mr. Soumitra Bandopadhyay, Advocate

Mr. Subhasis Bandopadhyay, Advocate

.....for the State

Mr. R.M. Chattopadhyay, Advocate

.....for the Distribution Company

Mr. Debashis Banerjee, Advocate

Mr. Arijit Ghosh, Advocate

.....for the Respondent No. 8

The present writ-petition is filed for a direction upon the Station Manger, Murarai, Customer Care Centre to effect the supply of electricity to energize the submersible pumps installed by the petitioners at their plot of land situated under Mouza - Nayet under of Murarai I Block, in the district of Birbhum.

The petitioners states that for the purpose of cultivation they installed the submersible pump on the basis of the notification dated November 3, 2011 whereby and whereunder an exemption was granted in respect of a plot of land within the particular block under Section 7 of the West Bengal Ground Water Resources (Management, Control and Regulations) Act, 2005.

The petitioner says that the plot of land belonging to the petitioners comes within the exempted block and, therefore, no prior permission is required to be obtained for installation of the submersible pump.

It appears that prior to the instant writ-petition, the private respondent filed WP 8299 (W) of 2017 before this court not only challenging the action of the WBSEDCL in providing the electricity to the petitioner, being the private respondent therein, but also not to operate the submersible pump for cultivation by the private respondent.

It was argued before this court that the said Act provides that the submersible pump shall not be allowed to install unless a permission is obtained from a competent authority and a "no objection" is submitted before the distribution company before effecting the supply of electricity therein. It was further argued that the said dispute was referred to the District Magistrate, Birbhum and after affording an opportunity of hearing to the respective parties, an order has been passed. Naturally, the private respondent who was the petitioner therein, submitted before the court that the decision has not been communicated. The said writ-petition was disposed of requesting the District Magistrate to communicate the said decision forthwith and the interim order which was granted therein, was to remain operative till the decision of the District Magistrate.

My attention is drawn to the order dated June 14, 2017 passed by the District Magistrate wherein it has been categorically observed that the Government by notification dated November 3, 2011 exempted the operation of the provisions of the said Act to Mururai Block-I as the particular block does not belong to the critical or semi-critical category.

Since there was no embargo in installing the submersible pump and once the Government has granted exemption, the objection of the private respondent that it cannot be installed unless a prior permission is obtained, does not stand.

Though the private respondent says that the interim order is still alive but after meaningful reading of the operative portion of the order dated June 16, 2017 passed by this court in WP 8299 (W) of 2017, this court does not find that the aforesaid submission to be correct. There is no interim order subsisting as on date as the District Magistrate has already taken a decision. Equally there is no fetter on the part of the distribution company in proceeding with the application filed by the petitioner to energize the submersible pump installed at the said plot of land.

In view of the above, the distribution company is directed to effect the supply of electricity to the petitioners to energize the submersible pump provided they fulfil and complies all other conditions and criterions required therefor.

The entire exercise shall be completed within six weeks from the date of communication of this order.

At this stage, it has been brought to the notice of this court as both the learned Advocates appearing for the petitioner and the distribution company uniformly submit that the private respondent vehemently objected and resisted at the time of effecting the supply of electricity to the petitioners.

Since this court does not find any substance in the objection raised by the private respondent, the distribution company is at liberty to approach the local police station in the event, obstruction and/or resistance is offered by the private respondent or from any corner while effecting the supply of electricity to the petitioners and if such approach is made, the Inspection-in-charge of the concerned police station is directed to render all assistance, cooperation and help to the employees of the distribution company in carrying out the execution of work as indicated hereinabove.

With these observations, the writ petition is disposed of. No order as to costs.

(Harish Tandon, J.)